

BC606535 BC606535

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: BC606535 Hearing Date: July 16, 2026 Dept: 732

Timothy Ryan, M.D. v. The County of Los Angeles, et al.

Thursday, July
16, 2026

CASE NUMBER: BC606535

OPPOSED

Plaintiff Timothy

Ryan's Motion for Leave to File Second Amended Complaint

Facts:

This is an action for employment retaliation. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Timothy Ryan, M.D. ("Ryan") is a vascular surgeon. (FAC ¶ 7.) While working at Harbor-UCLA Medical Center in January 2014, he was asked to participate in what he believed was an unnecessary surgical procedure, and refused. (FAC ¶ 8.) Specifically, Ryan alleges that a patient ("BH") was coerced by a Dr. Rodney White, M.D. ("White") to fraudulently present herself to the emergency room with chest pain so that he could surgically implant a stent graft for a "course" he taught in which he was paid a per-patient fee. (FAC ¶ 8.) During the surgery, BH had a stroke resulting in complete expressive aphasia. (FAC ¶ 9(h).)

Ryan

alleges that he reported the incident and his concerns regarding BH to several officers at Harbor-UCLA, including the Chief Medical Officer, the Chief of Surgery, the senior Vascular Surgeon and CEO of Harbor-UCLA. (FAC ¶ 10.) Ryan then argues that White began a course of retaliation against him beginning in June 2014. (FAC ¶ 11.) These actions include not referring cases to him, marginalizing him within the department, instructing other doctors not to refer cases to him, removing Ryan as an investigator in research, and filing a frivolous lawsuit against Ryan in July 2015. (FAC ¶ 12.)

Defendant

County of Los Angeles (the “County”) is alleged to own and operate Harbor-UCLA. (FAC ¶ 2.)

Procedural History: The

complaint was filed on January 8, 2016 alleging two causes of action:

1.

Retaliation in Violation of Health
and Safety Code § 1278.5

2.

Retaliation in Violation of Labor Code § 1102.5

On

April 11, 2016, this court sustained the County’s demurrer to the first cause of action without leave to amend.

On

December 14, 2017, this court granted in part and denied in part Ryan’s Motion to Compel Further Responses to Requests for Production Sets Seven and Eight. ON the same day, this court granted in part County’s Motion to Quash Deposition Subpoena. Also on this day, the court denied County’s Motion for Summary Judgment.

On

March 19, 2018, this court denied without prejudice County’s Motion to Assign Case to Long Cause.

On

March 26, 2018, this court granted in part and denied in part Ryan's Motion to Compel Further Responses.

On

March 4, 2019, this court granted Ryan's Motion for Leave to File the FAC.

Ryan

filed the FAC on March 6, 2019, alleging two causes of action:

1.

Retaliation in Violation of Labor Code § 1102.5

2.

Retaliation in Violation of Government Code § 12653

This

court on May 1, 2019, overruled County's demurrer.

This

court on June 9, 2021, granted Defendant's motion for summary adjudication as to the issue of Plaintiff's termination of employment and denial of privileges, but otherwise denied the motion.

On

July 21, 2021, this court denied Defendant's motion to reopen discovery.

This

court on January 7, 2022, denied Plaintiff's motion for leave to file a second amended complaint to allege a claim under Civil Code § 52.1, and denied Defendant's motion for sanctions based on Plaintiff's filing of that motion.

Trial

was had in this matter beginning on January 31, 2022, continuing for 21 days, with a jury verdict returned on March 15, 2022, finding for Defendant on the first cause of action, but finding for Plaintiff on the second cause of action under Government Code § 12653, and awarding him \$2.1 million in emotional distress damages.

The parties appealed and cross-appealed. A

remittitur was filed on May 30, 2025, with the court of appeal finding as follows.

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Reversing this court's denial of judgment notwithstanding the verdict on Plaintiff's second cause of action under Government Code § 12653, the sole claim on which he prevailed at trial, because as a public entity it was not liable for false-claims retaliation;

.

Reversing this court's order sustaining Defendant's demurrer to the original complaint's first cause of action under Health & Safety Code § 1278.5, on the grounds that such claims could not be brought against a public entity, when in fact public entities may be liable under that statute;

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Affirming this court's order granting Defendant's motion for summary adjudication on Plaintiff's claims for wrongful termination and denial of privileges under Labor Code § 1102.5;

.

Affirming this court's order denying Plaintiff's motion for leave to amend to add a Bane Act claim under Civil Code § 52.1.

.

Remanding this case for further proceedings as to Plaintiff's claim under Health & Safety Code § 1278.5.

Plaintiff

filed the present motion for leave to file a second amended complaint on December 16, 2025, and filed an amended motion on April 21, 2026.

Defendant

filed an opposition on April 30, 2026.

Plaintiff

filed a reply on May 6, 2026.

This
court on May 13, 2026, continued hearing on the present motion to permit
supplemental briefing and discovery status reports.

The
parties filed their supplemental briefs on June 25, 2026.

Plaintiff
filed a status report July 7, 2026, and Defendants filed a status report on
July 8, 2026.

I.
OBJECTIONS

Plaintiff
Timothy Ryan ("Plaintiff") submits objections to the declaration of John J.
Manier. Plaintiff's Objections No. 14, 20, 21, and 23, which concern Manier's
testimony concerning the contents of a medical report that he does not
authenticate, as well as certain exhibits that Manier does not authenticate on
grounds of personal knowledge. The remaining objections are OVERRULED.

II.
MOTION
FOR LEAVE TO AMEND

Code Civ. Proc.
section 473 subd. (a)(1) states that:

The
court may, in furtherance of justice, and on any terms as may be proper, allow
a party to amend any pleading or proceeding by adding or striking out the name
of any party, or by correcting a mistake in the name of a party, or a mistake
in any other respect; and may, upon like terms, enlarge the time for answer or
demurrer. The court may likewise, in its discretion, after notice to the
adverse party, allow, upon any terms as may be just, an amendment to any
pleading or proceeding in other particulars; and may upon like terms allow an
answer to be made after the time limited by this code.

"The trial court
has discretion to permit or deny the amendment of the complaint, but instances

justifying the court's denial of leave to amend are rare." (Armenta ex rel. City of Burbank v. Mueller Co. (2006) 142 Cal.App.4th 636, 642.)

"Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [Citations], this policy should be applied only '[w]here no prejudice is shown to the adverse party . . . ' [Citation.] A different result is indicated '[w]here inexcusable delay and probable prejudice to the opposing party' is shown. [Citation.]" (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.)

Pursuant to California Rule of Court Rule 3.1324, "[a] motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

Such a motion must include a supporting declaration stating, "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (CRC Rule 3.1324, subd. (b).)

Plaintiff Timothy Ryan, M.D. ("Plaintiff") seeks leave to file a Second Amended Complaint ("SAC") adding four causes of action as follows: Retaliation under Labor Code § 1102.5; Retaliation under the Federal False Claims Act ("FFCA") of 31 U.S.C. § 3130; Retaliation under the Insurance Fraud Prevention Act ("IFPA") of Insurance Code § 1871.7; and violation of due process under 42 U.S.C. § 1983. (Cannata Decl. Exh. A.)[1]

Plaintiff seeks leave to add causes of action under the FFCA and IFPA on the grounds that these claims are essentially similar to the claim for which Plaintiff was awarded damages after trial under Government Code § 12653, with the exception that these claims are

permissibly pleaded against public entities like Defendant. (Motion at pp. 7–9.) Plaintiff seeks leave to reintroduce the claim for retaliation under Labor Code § 1102.5, subd. (b) and (c), specifically as to the Plaintiff's termination and revocation of privileges, adversely decided by this court in granting Defendant's motion for summary adjudication, which was affirmed on appeal, on the grounds that a more recent decision by the California Supreme Court renders that decision erroneous. (Motion at pp. 10–12.) Plaintiff also seeks leave to add, in connection with the retaliation claims, an allegation that Defendant refused to provide him radiation dosimetry reports and accordingly caused his leukemia, with which he was evidently diagnosed in 2023. (Motion at p. 5.)

In assessing the present motion, it is relevant that it comes following trial, appeal, and a reversal of a verdict awarding damages to Plaintiff, with remand to proceed on only one of his remaining causes of action under Health & Safety Code § 1278.5. "While piecemeal litigation is to be discouraged, and while in the interest of the orderly administration of justice, the trial court should exercise caution in permitting the amendment of pleadings after trial and appeal[;] nevertheless, such amendment is a matter within the discretion of the trial court." (Estate of Horman (1971) 5 Cal.3d 62, 73.)

Plaintiff's attempts to reintroduce allegations related to the propriety of his termination are colored by delay and foreclosed by proceedings before this court and the appellate court. "The doctrine of "law of the case" deals with the effect of the first appellate decision on the subsequent retrial or appeal: The decision of an appellate court, stating a rule of law necessary to the decision of the case, conclusively establishes that rule and makes it determinative of the rights of the same parties in any subsequent retrial or appeal in the same case. (Leider v. Lewis (2017) 2 Cal.5th 1121, 1127.) The appellate court upheld this court's determination that no triable issues existed as to the non-retaliatory reason for the revocation of Plaintiff's privileges and the termination of his employment, as he had failed to execute a generally applicable release required by Defendant County of Los Angeles' ("Defendant") bylaws. (See 5/30/2025 Remittitur.) The court rejected Plaintiff's arguments that the release itself was unlawful such that a claim could be stated under Labor Code § 1102.5, and stated: "[W]e note that many issues—including Ryan's claim that his termination was wrongful—have already been resolved and are law of the case in further proceedings." (Remittitur at p. 68.) Plaintiff thus cannot seek to

renew those claims.

Plaintiff argues that the appellate court did not consider Civil Code § 1668, which prohibits certain releases. (Motion at p. 11.) But Plaintiff indeed argued before the appellate court that the release was barred by Civil Code § 1668. (Manier Decl. Exh. C.) And the court considered that statute, as it rejected Plaintiff's reliance on case authority that expressly relied on that statute. (Remittitur at pp. 59–60, addressing Plaintiff's reliance on *Westlake Community Hosp. v. Superior Court* (1976) 17 Cal.3d 465, which cited Civil Code § 1668.)

Plaintiff argues that the appellate court's holding is inconsistent with the later holding of *Whitehead v. City of Oakland* (2025) 17 Cal.5th 735. (Motion at pp. 10–11.) But that case held that “agreements to exculpate a party for future violations of statutes designed to protect public safety are unenforceable” (*Whitehead*, supra, 17 Cal.5th at p. 751), not that the kind of release at issue here was such an agreement, or that the refusal to sign such an agreement constitutes protected activity under Labor Code § 1102.5. That case thus furnishes no basis to withhold application of the law of the case doctrine.

Plaintiff argues that the “preferable practice [is] to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) But leave to amend may nonetheless be denied where the amendment would be “futile. (*Royalty Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110, 1124.) Here, the issues have been treated with sufficient thoroughness and directness at the trial and appellate level that the futility of the proposed amendment is apparent from the face of the motion.

Indeed, the parties have since availed themselves of the opportunity to supply lengthy supplemental briefs on the issue, and Plaintiff's additional briefing establishes only that Plaintiff's proposed theory of retaliation under Labor Code § 1102.5 was resolved by the court of appeal and is barred by the law of the case doctrine. Plaintiff argues that the law of the case cannot be applied to determine the sufficiency of the pleadings (Plaintiff's Supp. Brief at p. 11), it cites only authority for the proposition

that different evidence may obviate application of the law of the case doctrine. (People v. Barragan (2004) 32 Cal.4th 236, 248.) but Plaintiff neither pleads nor offers the existence any evidence would alter the appellate court's conclusions that the waiver and release constituted a non-retaliatory basis for Plaintiff's revocation of clinical privileges, not an unlawful act for which liability may lie under Labor Code § 1102.5, subd. (c). (Plaintiff's Supp. Brief at p. 14–15.)

Even assuming that the proposed Labor Code § 1102.5 claim was not barred by the law of the case doctrine, it has been, like most of Plaintiff's other proposed amendments, unreasonably and prejudicially delayed. This matter has been pending since January 8, 2016. An extended trial took place from January through March of 2022, appeals from which were resolved in May 2025. The proposed amendments thus concern wrongful conduct that occurred nigh on a decade ago, and in all cases based on conduct that Plaintiff knew of contemporaneously, but did not plead as a basis for liability. Plaintiff's proposed claim for violation of due process under 42 U.S.C. § 1983 is based on the revocation and suspension of clinical privileges occurring in 2018, and is based on their alleged deprivation without "pre-deprivation notice or hearing." (Proposed FAC ¶ 82.) This proposed claim, in addition to being an attempt to reopen the propriety of his termination, also targets a violation which encompassed facts entirely within his knowledge at the time that they occurred, and which could have been included as a claim prior to trial.

Additionally, Plaintiff's proposed allegation that Defendants retaliated against him by "[f]ailing to provide radiation dosimetry and exposure reports," although prompted in Plaintiff's telling by a recent cancer diagnosis, concerns adverse employment actions that Plaintiff (in a rejected filing in June 2025) alleged occurred from 2014 to 2017, long before the trial in this action. (See Rejected 6/27/2025 SAC ¶ 131; Slone v. El Centro Regional Medical Center (2024) 106 Cal.App.5th 1160, 1168 [Health & Safety Code § 1278.5 requires adverse employment action].) These allegations concern alleged wrongdoing well within Plaintiff's knowledge at or near the inception of this action, yet would expand the factual scope of the present action, requiring discovery into fading memories and documentary resources, certainly requiring the deposition of new witnesses and likely requiring the renewed depositions of those who have already testified in this protracted litigation, to address new adverse employment actions that Plaintiff already knew of.

But the same is not true as to all of Plaintiff's other proposed amendments. Plaintiff's proposed FFCA and IFPA claims largely concern the same conduct that supported his claim under Government Code § 12653, the California False Claims Act ("CFCA"). Defendant objects to these claims on the grounds that they prevailed on that earlier claim and ought not to defend against legal theories that could have been included at the outset of the action. (Opposition at pp. 18–19.) But this argument takes little account of the jury's finding that Defendant retaliated against Plaintiff under Government Code § 12653, for conduct that is now alleged to support these new legal theories. And although Defendant prevailed in its legal arguments on appeal as to Government Code § 12653, it did not prevail in its arguments against Plaintiff's for retaliation under Health & Safety Code § 1278.5, which has been returned to this court for further proceedings. Defendant does not articulate what prejudice it will suffer from litigating claims under IFPA and FFCA different from those litigating the retaliation claim that has already been remanded to this court.

In its supplemental briefing, Defendant argues that these FFCA and IFPA claims involve substantially different facts from those in Plaintiff's remaining claim for retaliation under Health & Safety Code § 1278.5, and from Plaintiff's prior claim under the CFCA, specifically because the FFCA claim alleges, in addition to false claims practices related to one patient (identified as "BH" in the operative FAC), new misconduct related to twelve other a patients. (Proposed Sac ¶ 28; Defendant's Supp. Brief at p. 7, 11..) Defendant also notes that the proposed IFPA claim references a scheme whereby "700-plus" patients were referred for stent-grafts pursuant to an alleged kickback scheme, through the efforts of two persons named George Kopchock and Rowena Buwalda, who allegedly acted as "runners" or "steerers" who "reported to Dr. White," a principal alleged wrongdoer in Plaintiff's operative pleadings. (Proposed SAC ¶¶ 48, 51.)

These allegations do not substantially increase the bounds of the present action. The allegations that Defendants identify are largely present in some form in the operative FAC. The FAC alleges that plaintiff was retaliated against for reporting violations of "laws preventing Medi-Cal and Medicare fraud for receiving government monies for unnecessary medical procedures, as well as "laws and regulations governing kickbacks," and that the conduct involving BH was "part of a larger scheme to promote certain medical devices and promote courses for certain medical device manufacturers, often at the

expense of patient safety.” (FAC ¶ 8j, 17.) This is substantially similar to the claims asserted under the FFCA and IFPA in the proposed SAC. Plaintiff has indeed already sought discovery concerning the alleged kickback scheme in this action. (See 12/14/2017 Order on Plaintiff’s Motion to Compel Further Responses.)

Moreover, the primary right asserted by Plaintiff through the FFCA and IFPA is not based on the alleged kickback scheme, or the use of runners and cappers, but rather the retaliation suffered by Plaintiff as a result of reporting on these alleged activities. (See *United States ex rel. Uhlig v. Fluor Corp.* (7th Cir. 2016) 839 F.3d 628, 635 [protected activity under FFCA requires “(1) the employee in good faith believes, and (2) a reasonable employee in the same or similar circumstances might believe, that the employer is committing fraud against the government”].) To the extent Plaintiff attempts to use the amended pleadings to expand the scope of discovery beyond matters relevant to Plaintiff’s individual retaliation claims, Defendant may object thereto, and if necessary file a motion for a protective order.

Defendant argues in its supplemental briefing that the FFCA and IFPA claims are substantively defective and leave to plead them would be futile. (Defendant’s Supp. Briefing at pp. 19–22.) However, these arguments are raised for the first time in supplemental briefing to which Plaintiff has not had an adequate opportunity to respond. Defendant may raise these arguments in a demurrer or other dispositive motion.

Defendant argues that Plaintiff’s attempt to add claims under the FFCA and IFPA is “claim splitting.” (Defendant’s Supp. Briefing at pp. 14–15.) But claim splitting, even by Defendant’s reckoning, occurs when a cause of action is split between separate lawsuits, and its authority rests upon circumstances in which a second legal theory on the same cause of action is advanced following the rendering of a final judgment in the prior action. (See *Triano v. F.E. Booth & Co.* (1932) 120 Cal.App. 345, 347 [“The former judgment is conclusive upon the cause of action litigated.”].) No claim splitting is proposed here.

Plaintiff finally argues that a Second Amended Complaint filed on June 27, 2025 and rejected by the clerk is actually the operative pleading and already effectual under Code of Civil Procedure § 472b. (Reply at pp. 2–3; Plaintiff’s Supp. Briefing at p. 6.) This statute sets the time in which to file

amended pleadings when leave to amend is granted following demurrer, or “[w]hen an order sustaining a demurrer without leave to amend is reversed or otherwise remanded by any order issued by a reviewing court.” (Code Civ. Proc. § 472b.) But as Defendant notes in its supplemental briefing, the “any amended pleading” language “in the second sentence of section 472b could refer only to an amended complaint directed to be filed when a reviewing court directs a trial court to sustain a demurrer with leave to amend.” (Dye v. Caterpillar, Inc. (2011) 195 Cal.App.4th 1366, 1377.) The appellate court here did not direct or authorize the filing of an amended pleading, thus Code of Civil Procedure § 472b does not permit Plaintiff to file an amended pleading as of right, without leave of court.

Accordingly, the motion for leave to amend is GRANTED in part. Plaintiff may file a Second Amended Complaint including claims for Retaliation under Health & Safety Code § 1278.5, FFCA, and IFPA. The motion is DENIED as to Plaintiff's proposed first cause of action under Labor Code § 1102.5, fifth cause of action under 42 U.S.C. § 1983, and allegations related to dosimetry, termination of employment, revocation of clinical privileges, and the legality of the release that formed the basis therefore, set out in paragraphs 19a, 19h, 19i, 19j, 19m, and 19n.

Superior Court of California

County of Los Angeles

Department 732

TIMOTHY RYAN, M.D.,

Plaintiff,

v.

THE COUNTY OF
LOS ANGELES, et al.,

Defendants.

Case No.:

BC606535

Hearing Date: July 16, 2022

[TENTATIVE] RULING RE:

Plaintiff Timothy Ryan's Motion for Leave to File Second Amended Complaint is GRANTED in part. Plaintiff may file a Second Amended Complaint.

Plaintiff Timothy Ryan's Motion for Leave to File Second Amended Complaint is GRANTED in part. Plaintiff may file a Second Amended Complaint including claims for Retaliation under Health & Safety Code § 1278.5, FPPA, and IFPA. The motion is DENIED as to Plaintiff's proposed first cause of action under Labor Code § 1102.5, fifth cause of action under 42 U.S.C. § 1983, and allegations related to dosimetry, termination of employment, revocation of clinical privileges, and the legality of the release that formed the basis therefore, set out in paragraphs 19a, 19h, 19i, 19j, 19m, and 19n.

Plaintiff to provide notice.

Dated: July 16, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court

[1]

These are the claims for which leave is sought in the present amended motion. The motion filed on December 16, 2025, sought leave to bring, in addition to federal false-claims retaliation and retaliation under the Insurance Code, claims under the Ralph Act (Civ. Code § 51.7), Bane Act (Civ. Code § 52.1), and Government Code § 815.6, which are not included in the present amended version of the proposed SAC. (See 12/15/2026 Motion.)